

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Shadman Khan	Team: Squad #12	CCRB Case #: 202311094	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 10/31/2023 7:30 AM	Location of Incident: § 87(2)(b) in Brooklyn	18 Mo. SOL 4/30/2025	Precinct: 67		
Date/Time CV Reported Fri, 11/24/2023 8:54 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 11/24/2023 8:54 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Jason Zummo	03905	939739	WARRSEC
2. DT3 Daniel Golat	00482	950506	WARRSEC

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Jason Wolfenhaut	03363	937749	WARRSEC
2. DT2 Daniel Kirk	06688	941225	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Jason Zummo	Abuse: Detective Jason Zummo entered § 87(2)(b) in Brooklyn.	A . Within NYPD Guidelines
B . DT3 Daniel Golat	Abuse: Detective Daniel Golat entered § 87(2)(b) in Brooklyn.	B . Within NYPD Guidelines
C . DT3 Jason Zummo	Abuse: Detective Jason Zummo searched § 87(2)(b) in Brooklyn.	C . Substantiated

Case Summary

§ 87(2)(b) filed this complaint via the CCRB's Call Processing System on behalf of herself and her mother, § 87(2)(b) on November 24, 2023.

On October 31, 2023, at approximately 7:30 AM, Det. Jason Zummo and Det. Daniel Golat of the Warrants Section Regional Fugitive Task Force entered § 87(2)(b) in Brooklyn with personnel from other law enforcement agencies (**Allegations A and B: Abuse of Authority, Within NYPD Guidelines**). Officers searched the apartment at Det. Zummo's instruction (**Allegation C: Abuse of Authority, Substantiated**). Neither § 87(2)(b) nor § 87(2)(b) were arrested as a result of this incident.

There is no body worn camera (BWC) video capturing this incident because the Warrants Section officers in question were not yet equipped with BWCs as of the date of this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Detective Jason Zummo entered § 87(2)(b) in Brooklyn.

Allegation (B) Abuse of Authority: Detective Daniel Golat entered § 87(2)(b) in Brooklyn.

Allegation (C) Abuse of Authority: Detective Jason Zummo searched § 87(2)(b) in Brooklyn.

§ 87(2)(b) provided a statement to the CCRB on December 4, 2023 (Board Review 03). She stated that she awoke in her mother's apartment to the sound of banging at the front door. § 87(2)(b) approached the front door and looked through the peephole. § 87(2)(b) saw Det. Zummo standing at the door. Det. Zummo instructed § 87(2)(b) to open the door. When § 87(2)(b) opened the door, she saw Det. Golat and three other officers standing behind Det. Zummo. § 87(2)(b) believed that the other officers were US Marshals, but was unable to explain how she knew this. § 87(2)(b) stood at the entrance before she decided to let the officers into the apartment. § 87(2)(b) explained that she let the officers in by walking into the apartment toward the living room and instructing the officers not to slam the door. Det. Zummo, Det. Golat, and an unidentified officer entered the apartment. Two officers remained outside of the apartment. Immediately upon entry, one of the unidentified officers opened a closet door, shined his flashlight inside of the closet briefly, and then closed that closet door. Another officer looked in the bathroom. That officer then briefly looked into one of the bedrooms before fully walking into § 87(2)(b) bedroom and exiting soon after. § 87(2)(b) was only able to see this much from the living room. § 87(2)(b) did not tell officers to look through the rooms. After asking § 87(2)(b) and her mother about the whereabouts of § 87(2)(b) brother, § 87(2)(b) the officers departed.

§ 87(2)(b) provided a statement on December 5, 2023 (Board Review 04). § 87(2)(b) was in her apartment when she heard knocking at the front door. § 87(2)(b) looked through the peephole and saw Det. Zummo and five other officers standing outside of her door. Either § 87(2)(b) or § 87(2)(b) opened the door. One of the officers stated that they were US Marshals. When § 87(2)(b) opened the door, all of the officers immediately entered the apartment at the same time. No officers asked for consent to enter the apartment. Two officers searched the bedrooms and the bathroom. One of the officers opened a closet near the entrance of the apartment and looked inside of it briefly. The officers then departed.

The investigation received negative results for any BWC video regarding this incident and learned that the Warrants Section officers in question were not equipped with any at the time of the incident (Board Review 01 and Board Review 02).

Det. Zummo provided a statement on April 15, 2024 (Board Review 05). He stated that in his capacity as a member of the Regional Fugitive Task Force, he was assigned a case involving subject § 87(2)(b) who was wanted for double homicide. There was a probable cause I-Card for § 87(2)(b). Det. Zummo performed database checks and learned that § 87(2)(b) resided at § 87(2)(b). Accordingly, Det. Zummo decided to visit that location to speak with § 87(2)(b) the other occupant of that apartment, to gather additional information about § 87(2)(b). Det. Zummo went to the apartment with Det. Golat and other officers from his unit, possibly Det. Wolfenhaut and Det. Kirk. Also present were personnel from the Department of Probation and State Department of Corrections. Det. Zummo knocked on the apartment door and announced police presence. § 87(2)(b) opened the door. Det. Zummo explained that he was there to speak about a prior incident involving § 87(2)(b). Det. Zummo asked to enter the apartment and have a conversation. Det. Zummo only asked to enter the apartment at the time because he wished to speak about § 87(2)(b). § 87(2)(b) verbally informed Det. Zummo that he could enter the apartment. Det. Zummo and Det. Golat entered the apartment and moved into the living room. Det. Zummo believed another officer may have entered the apartment and stood at the front door, but he was unsure which officer that may have been. Det. Zummo asked for information about § 87(2)(b) but § 87(2)(b) did not provide any useful information. At some point during the conversation, Det. Zummo asked § 87(2)(b) when § 87(2)(b) had last been in the apartment and asked if § 87(2)(b) lived there. § 87(2)(b) responded that § 87(2)(b) was not there at that time and stated that the officers could look around and check. She then opened a bedroom door, inviting officers to check inside. Because the investigation involved a double homicide and because § 87(2)(b) provided consent to search, Det. Zummo decided to have officers conduct a protective sweep. Det. Zummo did not have any civilian sign a consent to search form as he was only present to interview the occupants. Det. Zummo instructed the other officers on his team, who were outside of the apartment, to enter and conduct a protective sweep. An officer from the Department of Probations and an officer from the Department of Corrections entered and searched the apartment. These officers looked in the bedrooms and the closets while Det. Zummo continued to speak to § 87(2)(b). Det. Golat did not participate in the search, which lasted less than one minute. Afterward, Det. Zummo attempted to obtain more information about § 87(2)(b) but was unable to learn anything helpful. Det. Zummo provided § 87(2)(b) with his business card and instructed her to have § 87(2)(b) contact a lawyer and get in touch with Det. Zummo. Det. Zummo, Det. Golat, and all other officers then departed from the location.

Det. Golat provided a statement on April 29, 2024 (Board Review 06). Det. Zummo informed Det. Golat that he was investigating a case involving a homicide and that the subject, § 87(2)(b) resided at § 87(2)(b). Det. Zummo wished to go to § 87(2)(b) apartment to speak to the family members and gather information about § 87(2)(b). Det. Zummo, Det. Golat, Det. Wolfenhaut, and Det. Kirk went to the apartment together. They were accompanied by Parole Officer Cam and Probation Officer Clarke, who both worked with the Warrants Section but were not members of the NYPD. Once at the location, either Det. Zummo or Det. Golat knocked on the apartment door. § 87(2)(b) answered the door. Det. Golat and Det. Zummo explained that they were looking for § 87(2)(b). § 87(2)(b) agreed to speak with the officers and invited the officers inside. Det. Golat did not recall the specifics of how she invited the officers inside. Det. Golat, Det. Zummo, Parole Officer Cam, and Probation Officer Clarke entered the apartment behind § 87(2)(b). Det. Wolfenhaut and Det. Kirk remained outside in the hallway. Once inside, Det. Zummo informed § 87(2)(b) that they needed to conduct a brief protective sweep of the location to ensure § 87(2)(b) was not present, as he could potentially harm the officers. § 87(2)(b)

verbally stated that officers could search the location. After § 87(2)(b) stated that the officers could search, Parole Officer Cam and Probation Office Clarke searched the apartment. This involved looking throughout the apartment in any area where a person could hide. They checked the living room and the rooms in the rear of the apartment. Only these two officers conducted the search. Det. Golat did not recall seeing any member of the NYPD participate in the search.

The investigation obtained Det. Zummo's DD5s from the Enterprise Case Management System (ECMS) (Board Review 07). Tracking # [REDACTED] (Page 11) details that on October 31, 2023, at approximately 7:30 AM, Det. Zummo and other members of the Regional Fugitive Task Force visited the incident location to attempt to apprehend or obtain a location for [REDACTED]. Once at the location, Det. Zummo spoke to [REDACTED] and [REDACTED] who were mostly uncooperative. [REDACTED] affirmed speaking to [REDACTED] but refused to provide a number for herself or [REDACTED]. [REDACTED] did not have a number for [REDACTED] or know his means of transportation. Det. Zummo left a business card and asked [REDACTED] to have [REDACTED] contact him.

The investigation received negative results for any consent to search report associated with this incident (Board Review 08).

Det. Zummo did not make any entry in his activity log regarding this incident (Board Review 15).

According to *People v Long*, 508 N.Y.S.2d 774 (1986) (Board Review 09), the court has found that where there are no threats or coercive behavior by the police, and a civilian's cooperative behavior is evidence of voluntary consent, officers may make a lawful entry into a home. In the absence of specific words of consent, a civilian's consent can be inferred from their conduct, such as their words, deeds, and gestures in admitting police officers into a private dwelling.

NYC Administrative Code 14-173 (Guidance regarding consent searches) (Board Review 23) requires officers equipped with BWCs to create a video record of civilians' voluntary consent and requires that, in the case that officers are not equipped with BWCs, the Department develop and implement a procedure for officers to document consent in writing.

According to Patrol Guide Procedure 212-11 (Board Review 16), officers may request consent to search during a level 2 encounter. The consent must be given voluntarily. For all consent searches, officers are to prepare a Consent Search Report for each person from whom officers request a consent to search.

According to numerous New York State rulings, officers may conduct a “protective sweep,” or “security check,” a quick and limited pass through premises to check for persons who may destroy evidence or pose a threat to the officers. See, for example, *People v. Green*, 480 N.Y.S.2d 220 (1984) (Board Review 19), *People v. Golob*, 547 N.Y.S.2d 69 (1989) (Board Review 20), *People v. De Vito*, 493 N.Y.S.2d 892 (1985) (Board Review 22), and *People v. Benyi*, 544 N.Y.S.2d 74 (1989) (Board Review 21). In all of these cases, a protective sweep is lawful when officers are immediately responding to the report of a crime. None of these cases described officers conducting a protective sweep during a follow-up home visit such as that in question here.

§ 87(2)(g) § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

All parties affirmed that, at a minimum, Det. Zummo and Det. Golat entered the apartment. § 87(2)(g) § 87(2)(b)

§ 87(2)(g)

it is therefore recommended that **Allegations A and B** be closed as **Within NYPD Guidelines**.

Det. Zummo and Det. Golat both stated that Det. Zummo instructed other officers to conduct a search of the apartment. § 87(2)(g)

As noted, Det. Zummo made no entry in either his activity log or his DD5s indicating that the civilians consented to a search. There is no video documenting consent. § 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **Substantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b)
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- Det. Zummo has been a member of service for 18 years and has been a subject in 12 CCRB complaints and 21 allegations, of which none were substantiated.
- Det. Golat has been a member of service for 12 years and has been a subject in 13 cases and 36 allegations, of which one was substantiated.
 - Case #201710171 involved a substantiated allegation of an entry of premises against Det. Golat. The Board recommended formalized training and the NYPD imposed formalized training.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of April 10, 2024, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (Board Review 13).

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 12

Investigator:	Shadman Khan	SI Shadman Khan	05/15/2024
	Signature	Print Title & Name	Date

Squad Leader: <u>Samuel Ross</u>	<u>IM Samuel Ross</u>	<u>05/15/2024</u>
Signature	Print Title & Name	Date

Reviewer: _____

Signature	Print Title & Name	Date
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